



CHAPTER 26

An Act to amend the House of Commons (Redistribution of Seats) Act, 1949. [14th May, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The deputy chairman of each Boundary Commission under the House of Commons (Redistribution of Seats) Act, 1949 (hereinafter referred to as “the principal Act”), shall be a judge who—

Constitution of Boundary Commissions,
12, 13 & 14
Geo. 6. c. 66.

- (a) in the case of the Commission for England shall be a judge of the High Court appointed by the Lord Chancellor,
- (b) in the case of the Commission for Scotland shall be a judge of the Court of Session appointed by the Lord President of the Court of Session,
- (c) in the case of the Commission for Wales shall be a judge of the High Court appointed by the Lord Chancellor,
- (d) in the case of the Commission for Northern Ireland shall be a judge of the High Court in Northern Ireland appointed by the Lord Chief Justice of Northern Ireland,

and each deputy chairman shall hold his appointment for such term and on such conditions as may be determined before his appointment by the person appointing him.

(2) The officers of each Commission shall include two assessors who shall be—

- (a) in the case of the Commission for England, the Registrar General for England and Wales and the Director General of Ordnance Survey,
- (b) in the case of the Commission for Scotland, the Registrar General of Births, Deaths and Marriages in Scotland and the Director General of Ordnance Survey,
- (c) in the case of the Commission for Wales, the Registrar General for England and Wales and the Director General of Ordnance Survey,
- (d) in the case of the Commission for Northern Ireland the Registrar General of Births, Deaths and Marriages for Northern Ireland and the Commissioner of Valuation for Northern Ireland,

and those persons shall cease to be members of the Commissions.

Boundary
Commissions'
reports.

2.—(1) After the coming into force of this Act a Boundary Commission's report under subsection (1) of section two of the principal Act shall be submitted not less than ten or more than fifteen years from the date of the submission of the Commission's last report under that subsection; and subsection (2) of that section (which in general requires reports to be made not less than three or more than seven years from the date of the submission of the Commission's last report) shall cease to have effect.

(2) It shall not be the duty of a Boundary Commission, in discharging their functions under the said section two, to aim at giving full effect in all circumstances to the rules set out in the Second Schedule to the principal Act, but they shall take account, so far as they reasonably can, of the inconveniences attendant on alterations of constituencies other than alterations made for the purposes of rule 4 of those rules, and of any local ties which would be broken by such alterations; and references in that section to giving effect to those rules shall be construed accordingly.

Electoral
quotas.

3. In the application of rule 5 of the rules set out in the Second Schedule to the principal Act (under which the electorate of a constituency is to be brought as near the electoral quota as is practicable having regard to the other rules in that Schedule) to a constituency in any of the several parts of the United Kingdom for which there is a Boundary Commission, the expression "electoral quota" shall mean a number obtained by dividing the electorate for that part of the United Kingdom by the number of constituencies in it existing on the enumeration date (and not, as at present in Great Britain, a number obtained by reference to Great Britain as a whole).

4.—(1) Where a Boundary Commission revise any proposed recommendations after publishing a notice of them under paragraph 3 of Part III of the First Schedule to the principal Act, the Commission shall comply again with that paragraph in relation to the revised recommendations, as if no earlier notice had been published. Procedure of Boundary Commissions.

(2) Where, on the publication of the notice under the said paragraph 3 of a recommendation of a Boundary Commission for the alteration of any constituencies, the Commission receive any representation objecting to the proposed recommendation from an interested authority or from a body of electors numbering one hundred or more, the Commission shall not make the recommendation unless, since the publication of the said notice, a local inquiry has been held in respect of the constituencies under paragraph 4 of the said Part III:

Provided that, where a local inquiry was held in respect of the constituencies before the publication of the said notice, this subsection shall not apply if the Commission, after considering the matters discussed at the local inquiry, the nature of the representations received on the publication of the said notice and any other relevant circumstances, are of opinion that a further local inquiry would not be justified.

(3) In the last foregoing subsection, “interested authority” and “elector” respectively mean, in relation to any recommendation, a local authority whose area is wholly or partly comprised in the constituencies affected by the recommendation, and a parliamentary elector for any of these constituencies; and for this purpose “local authority” means the council of any county, or any borough (including a metropolitan borough) or of any urban or rural district.

(4) In the application of the last foregoing subsection to Scotland, for the reference to a borough there shall be substituted a reference to a burgh, and for the reference to an urban or rural district there shall be substituted a reference to a district.

5. In subsection (3) of section one of the principal Act (which provides that the administrative county of Monmouth shall be taken to be part of Wales for the purposes of that Act) for the words “the administrative county of Monmouth” there shall be substituted the word “Monmouthshire”. Application of principal Act to Monmouthshire.

6. The principal Act shall have effect subject to the amendments specified in the Schedule to this Act, being amendments consequential on the foregoing provisions of this Act. Consequential amendments.

Short title,
repeal and
extent.

7.—(1) This Act may be cited as the House of Commons (Redistribution of Seats) Act, 1958, and shall be included among the Acts which may be cited as the Representation of the People Acts, and this Act and the House of Commons (Redistribution of Seats) Act, 1949, may be cited together as the House of Commons (Redistribution of Seats) Acts, 1949 and 1958.

(2) In the principal Act, subsection (2) of section two and paragraph 6 of Part I of the First Schedule are hereby repealed.

(3) Nothing in this Act shall affect the law relating to the Parliament of Northern Ireland.

SCHEDULE

Section 6.

CONSEQUENTIAL AMENDMENTS OF PRINCIPAL ACT

1. In Part I of the First Schedule to the principal Act paragraph 6 shall cease to have effect and—

- (a) in paragraph 2 the words “a judge as deputy chairman” shall be substituted for the words “the Registrar General of Births, Deaths and Marriages in England, the Director General of Ordnance Survey”,
- (b) in paragraph 3 the words “a judge as deputy chairman” shall be substituted for the words “the Registrar General of Births, Deaths and Marriages in Scotland, the Director General of Ordnance Survey”,
- (c) in paragraph 4 the words “a judge as deputy chairman” shall be substituted for the words “the Registrar General of Births, Deaths and Marriages in England, the Director General of Ordnance Survey”, and
- (d) in paragraph 5 the words “a judge as deputy chairman” shall be substituted for the words “the Registrar General of Births, Deaths and Marriages for Northern Ireland, the Commissioner of Valuation for Northern Ireland”.

2. For rule 7 in the Second Schedule to the principal Act there shall be substituted the following rule—

“7. In the application of these rules to each of the several parts of the United Kingdom for which there is a Boundary Commission—

- (a) the expression “electoral quota” means a number obtained by dividing the electorate for that part of the United Kingdom by the number of constituencies in it existing on the enumeration date;
- (b) the expression “electorate” means—
 - (i) in relation to a constituency, the number of persons whose names appear on the register of parliamentary electors in force on the enumeration date under the Representation of the People Acts for the constituency;
 - (ii) in relation to the part of the United Kingdom, the aggregate electorate as hereinbefore defined of all the constituencies therein;
- (c) the expression “enumeration date” means, in relation to any report of a Boundary Commission under this Act, the date on which the notice with respect to that report is published in accordance with section two of this Act.”